

**Superior Court of the State of California
County of Orange**

**Hon. ANDRE MANSSOURIAN
Department C12 – (657) 622-5212**

TENTATIVE RULINGS

Court will make every effort to post tentative rulings by approximately 3:00 p.m. the court day before the date the motion is to be heard.

If the parties agree to submit on the Court's tentative ruling, please call Department C12 directly to inform the court that **all parties** submit to the Court's tentative ruling.

Reminder: Court does NOT provide court reporters.

No filings or briefs of any kind will be accepted after the tentative ruling is posted.

Parties are welcome to be present in court for the law and motion calendar or appear by Zoom. To make an appearance via Zoom please click the following link. If you are unable to log in, please call the department for an alternative arrangement. <https://www.occourts.org/civil-remote-hearings>.

July 10, 2026

#	Case Name	Tentative
1.	Cecilia and John V, LLC vs. Nguyen 24-01431827	Motion to Be Relieved as Counsel of Record The motion by Shawn M. Olsen and Olsen Law Firm to withdraw as counsel for defendant Kim-Hiem Thi Nguyen is CONTINUED to September 18, 2026, at 9:30 a.m. in Department C12. Moving counsel has not provided the required proposed order (form MC-053). (Cal. Rules of Court, Rule 3.1362, subds. (b), (e).) Moving counsel shall file and serve a completed proposed order (form MC-053) on the client and parties, along with a notice of continuance, within seven calendar days, and shall file proof of service of the foregoing at least five court days prior to the continued hearing date.

		The Case Management Conference currently scheduled for October 29, 2026, remains on calendar. THIS RULING IS FINAL. Moving counsel shall give notice.
2.	Auto Box Fullerton, LLC vs. Roseville Fullerton Burton Holdings, LLC 23-01309593	1. Motion to Be Relieved as Counsel of Record 2. Motion to Be Relieved as Counsel of Record The motion of attorneys Michael D. Adams, Alexander P. Swanson, Talya Goldfinger of Rutan & Tucker, LLP to withdraw as attorney of record for Defendants Roseville Fullerton Burton Holdings, LLC and Naeem Niamat is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) This order shall become effective upon the filing of the proof of service of the executed order. THIS RULING IS FINAL. Moving attorney is to give notice.
3.	Wells vs. Lyft, Inc. 22-01297972	1. Motion to Compel Deposition (Oral or Written) 2. Case Management Conference Defendant Steven Geranmayeh's Motion to Compel the Deposition of Greg Edward Guild is GRANTED. Plaintiff Greg Guild has failed to appear at his deposition despite multiple notices of deposition. Moreover, Plaintiff Guild's prior counsel sought relief from his representation of Plaintiff because he had been unable to communicate or locate his client. Defendant seeks terminating sanctions dismissing Plaintiff Guild's complaint due to his continual failure to appear at his deposition. (Code Civ. Proc., § 2023.030(d).) Plaintiff has not filed an opposition to this motion or otherwise objected to Defendant's requested relief. The court may deem failure to oppose a motion as consent to granting the motion. (CRC, Rule 8.54(c).) Accordingly, Defendant's request for terminating sanctions is GRANTED. The Court orders the complaint as to Plaintiff Guild to be dismissed without prejudice.

		The Case Management Conference is VACATED, and a jury trial date is now set for May 28, 2027. NOTE: the 5-year deadline is December 20, 2027. Moving Defendant to give notice of this ruling.
4.	Secor vs. Wong 24-01419650	1. Motion to Compel Further Responses to Form Interrogatories 2. Motion to Compel Production 3. Motion to Compel Response to Requests for Admissions Plaintiff CBN Management, Inc.'s motions to compel defendants Nancy Lai Sum Wong Individually and as Trustee of the Nancy L.S. Wong Living Trust to further respond to discovery is granted as follows. The ruling below acknowledges the fact that CBN states it has now received further responses. This ruling is as to responses that have not already been provided. The court will not consider the sufficiency of the newly provided responses at this time. Should CBN determine any of them to be insufficient, it shall file a new motion with a new separate statement addressing the perceived insufficiencies. To the extent Wong has not provided further responses to Form Interrogatory Nos. 2.1, 2.2, 2.5. 2.7 and 17.1 she shall provide further responses, without objection, within 30 days; To the extent Wong has not provided further responses to Request for Production Nos. 1-5, 11, 21-24, 30-32, 35-38 and 42 and produced all responsive documents in Defendants' possession, custody or control she shall provide further responses, without objection, within 30 days. To the extent Wong has not provided further responses to Request for Admission No. 31 she shall provide further responses, without objection, within 30 days. CBN is awarded combined sanctions in the total amount of \$6,105.00 against Wong only, payable with 30 days. CBN's objections to the Declaration of Brook John Changala are overruled as to #1 and #4 and sustained as to the remainder. Plaintiff to give notice of this ruling.

5.	Witham vs. Engle 23-01340545	1. Motion to Compel Further Responses to Form Interrogatories 2. Motion to Compel Further Responses to Special Interrogatories 3. Motion to Compel Production 4. Motion to Compel Response to Requests for Admissions The motions by cross-complainant Chad Engle to compel cross-defendant Axel L. Espino Oliva dba OC Construction [Oliva] to provide further responses to moving party's first sets of Form Interrogatories, Special Interrogatories, Requests for Admissions, and Requests for Production, are DENIED. (Code Civ. Proc., §§ 2030.300, 2031.310, 2033.290 [authorizing motions].) First, proof of service of all motions is defective, as the sender's electronic service address is missing. (Code Civ. Proc., § 1013b, subd. (b)(1).) There is no responsive pleading waiving the defective proof of service. (See <i>Carlton v. Quint</i> (2000) 77 Cal.App.4th 690, 698 [response on merits can waive service defect].) Second, the motions are untimely. The motions were required to be filed "within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing ..." (Code Civ. Proc., §§ 2030.300, subd. (c), 2031.310, subd. (c), 2030.290, subd. (c).) The responses, consisting of objections only, were served 10-10-25 by e-service (Gutenplan Decl., Ex. I), but the motions were not filed until 5-8-26, over five months later. (See Code Civ. Proc., §§ 2030.250 subds. (a), (c), 2031.250, subds. (a), (c), and 2033.240, subds. (a), (c) [responses consisting of only objections need not be verified]; see also moving papers at 6:15-23 [conceding 45-day motion deadline applies to objection-only responses].) Finally, moving party fails to provide sufficient evidence showing compliance with the meet and confer requirements for all motions. Each motion "shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., §§ 2030.300, subd. (b)(1), 2031.310, subd. (b)(2), 2033.290, subd. (b)(1).) In turn, Code Civ. Proc., § 2016.040, effective 1-1-26 [prior to the filing of the instant motions], states: (a) A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.
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		(b) The declaration shall also include whether the moving party has met and conferred, including through an electronic communication, regarding the retention of a certified shorthand reporter to report the hearing on the motion. This subdivision does not prevent the retention of a certified shorthand reporter. Moving party only met and conferred in writing, and there is no evidence of any discussions regarding court reporter contentions. (Gutenplan Decl., ¶ 14, Ex. K [email exchange].) Further, even assuming written efforts only were sufficient, moving party has not provided a copy of any meet and confer letter, nor any evidence of its substance; thus, there is no way for the court to determine whether moving party met and conferred regarding “each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a).) Accordingly, the motions are DENIED. Clerk shall give notice.
6.	Rodriguez vs. Melo 25-01470408	1. Motion to Set Aside/Vacate Default 2. Case Management Conference Defendant Manuel Rivera Melo’s motion to set aside default and/or default judgment pursuant to Code of Civil Procedure section 473.5 is DENIED. Defendant has brought this motion solely pursuant to Code of Civil Procedure section 473.5. Section 473.5 addresses the situation where the defendant did not receive actual notice in time to defend, despite effective service. (<i>California Capital Ins. Co. v. Hoehn</i> (2024) 17 Cal.5th 207, 215.) In order to obtain relief under section 473.5, defendant must show, among other things, that defendant did not receive actual notice of the summons and complaint in time to defend the action (i.e., in time to file an answer to the complaint or other responsive pleading). (See Code Civ. Proc., § 473.5; <i>Rios v. Singh</i> (2021) 65 Cal.App.5th 871, 885.) The defendant must establish each of these things through admissible evidence. (<i>Anastos v. Lee</i> (2004) 118 Cal.App.4th 1314, 1318; <i>Tunis v. Barrow</i> (1986) 184 Cal.App.3d 1069, 1077-1078.) In addition, the motion must be accompanied by “a copy of the answer, motion, or other pleading proposed to be filed in the action.” (Code Civ. Proc., § 473.5, subd. (b).)

		Here, defendant admits he had actual notice of this action by 3/29/25. (Melo Decl. ¶ 7 [“I first learned about this lawsuit on or around March 29, 2025, in the evening, when I found the documents on my porch.”].) This was almost five months before defendant’s default was entered on 8/26/25. Relief under section 473.5 is not available where, as here, the defendant had actual notice of the summons and complaint in time to defend the action but failed to file an answer or other responsive pleading for months, resulting in his default. (See Code Civ. Proc., § 473.5, subd. (a).) Further, while defendant has submitted a proposed cross-complaint in support of the motion, he has failed to submit a proposed answer or other responsive pleading to the complaint. (See, e.g., Code Civ. Proc., §§ 430.10 [demurrer], 430.30 [objection to complaint by demurrer and/or answer], 431.30 [answer], 435-436 [motion to strike]; see also <i>id.</i>, § 585, subds. (a)-(b) [types of responses to the complaint that prevent the entry of default].) A cross-complaint is treated as an independent action from the complaint and does not “answer” or otherwise “respond” to a complaint. (See <i>Ohio Casualty Ins. Group v. Superior Court</i> (1994) 30 Cal.App.4th 444, 448 [“A cross-complaint is generally considered to be a separate action from that initiated by the complaint.”]; <i>Westamerica Bank v. MBG Industries, Inc.</i> (2007) 158 Cal.App.4th 109, 132 [a complaint and cross-complaint are treated as independent actions for most purposes, except with respect to the requirement of one final judgment].) Defendant has therefore also failed to submit “a copy of the answer, motion, or other pleading proposed to be filed in the action,” as required by section 473.5. (Code Civ. Proc., § 473.5, subd. (b).) The Case Management Conference is VACATED, and the Court now sets an OSC re: Dismissal (Entry of Default/Default Judgment) for January 14, 2027, at 9:30 a.m. in Department C12. Clerk shall give notice.
7.	Lauretano vs. UDR Eight80 II LP 26-01537862	1. Demurrer to Complaint 2. Motion to Strike Complaint 3. Case Management Conference <u>Defendant UDR Eight80 II, LP’s Demurrer</u> Defendant UDR Eight80 II, LP’s demurrer to Plaintiff Courtney Lauretano’s Complaint is OVERRULED. “The elements of a cause of action for IIED are as follows: (1) defendant engaged in extreme and outrageous conduct (conduct so

extreme as to exceed all bounds of decency in a civilized community) with the intent to cause, or with reckless disregard to the probability of causing, emotional distress; and (2) as a result, plaintiff suffered extreme or severe emotional distress.” (*Berry v. Frazier* (2023) 90 Cal.App.5th 1258, 1273, *as modified on denial of reh'g* (May 15, 2023); *Crouch v. Trinity Christian Center of Santa Ana, Inc.* (2019) 39 Cal.App.5th 995, 1007.) “[W]hether conduct is ‘outrageous’ is usually a question of fact.” (*Berry v. Frazier* (2023) 90 Cal.App.5th 1258, 1274, *as modified on denial of reh'g* (May 15, 2023).)

“[T]he standard for judging outrageous conduct does not provide a ‘bright line’ rigidly separating that which is actionable from that which is not.” (*Ibid.*) “Indeed, its generality hazards a case-by-case appraisal of conduct filtered through the prism of the appraiser’s values, sensitivity threshold, and standards of civility.” (*Ibid.*) “The process evoked by the test appears to be more intuitive than analytical. ...” (*Ibid.*)

Defendant argues that Plaintiff’s cause of action for intentional infliction of emotional distress fails because the Complaint does not allege sufficiently outrageous conduct and does not allege intent or reckless disregard for the possibility of causing emotional distress.

Since the question of whether conduct is sufficiently outrageous to support a cause of action for intentional infliction of emotional distress is a question of fact, it is not appropriately resolved in an attack on the pleadings.

The element of intent is sufficiently alleged in the Complaint. Plaintiff alleges that Defendant exposed Plaintiff to the uninhabitable conditions, despite being repeatedly put on notice of these conditions and failing to address them, with reckless disregard for Plaintiff’s mental and emotional well-being. (See, e.g., Complaint at ¶¶101-102.)

Accordingly, the demurrer is OVERRULED.

Motion to Strike

Defendant’s Motion to Strike portions of Plaintiff’s Complaint is GRANTED. (Code Civ. Proc. §436; Civ. Code §3294, subd. (b).)

Civil Code section 3294 states:

“(a) In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the

		defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant. (b) An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” “In addition to the requirement that the operative complaint set forth the elements as stated in section 3294, it must include specific factual allegations showing that defendant's conduct was oppressive, fraudulent, or malicious to support a claim for punitive damages. [citation] Punitive damages may not be pleaded generally. [citation].” (<i>Today's IV, Inc. v. Los Angeles County Metropolitan Transportation Authority</i> (2022) 83 Cal.App.5th 1137, 1193.) Plaintiff does not specifically allege the identity and conduct of an officer, director or managing agent of Defendant that constitutes malice, fraud, and/or oppression. As this defect can reasonably be cured through amendment, Plaintiff shall have 30 days to file a First Amended Complaint. The Case Management Conference is CONTINUED to January 14, 2027, at 9:30 a.m. in Department C12. Defendant shall provide notice.
8.	Morrissey vs. Noujaim 25-01506560	Motion for Preference WITHDRAWN
9.	Salinas vs. Bazoft Automotive 23-01352644	1. Motion to be Relieved as Counsel of Record 2. Motion to be Relieved as Counsel of Record 3. Motion to be Relieved as Counsel of Record The motions by Anthony Chavos, Laurie Rau, Chavos & Rau APLC, to withdraw as counsel for defendants Bazoft Automotive d/b/a South

Coast Mitsubishi, Nissan Extended Service Corporation, Inc., and Sentry Select Insurance Company, **are CONTINUED to September 18, 2026, at 9:30 a.m. in Department C12.**

Moving parties were required to serve the motions at least 16 court days prior to the hearing, with an additional five calendar days for regular mail service. (Code Civ. Proc., § 1005, subd. (b).) E-service requires an additional two court days. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).)

Moving parties served the motions by e-service and regular mail on 6-15-26, which is 16 court days, but only one additional calendar/court day, and thus untimely.

Further, proof of e-service is defective, as the sender's email address is missing. (Code Civ. Proc., § 1013b, subd. (b)(1).)

There is no response by any party waiving the foregoing service defects. (See *Carlton v. Quint* (2000) 77 Cal.App.4th 690, 698 [response on merits can waive service defect].) Accordingly, the hearing is continued to correct the insufficient service.

Moving parties shall give notice of the continuance to all parties, file proof of service of same **by August 7, 2026.**

The Mandatory Settlement Conference is VACATED but will be rescheduled by this Court upon a renewed request.

The Jury Trial is CONTINUED to March 26, 2027, at 9:30 a.m. in Department C12.

THIS RULING IS FINAL.

Moving Defense Counsel to give notice of this ruling.